

25NNCV06562 25NNCV06562

County: los-angeles
Division: Civil Law and Motion
Department: 3
Hearing date: 2026-09-21
Motion: MOTION TO QUASH SERVICE OF SUMMONS
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Case Number: 25NNCV06562 Hearing Date: September 21, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

DAVID I.
PANKONIN,

Plaintiff(s),

vs.

ANNA
TAN, et al.,

Defendant(s).

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CASE NO.: 25NNCV06562

[TENTATIVE]

ORDER RE: MOTION TO QUASH SERVICE OF SUMMONS

Dept.

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8:30

a.m.

September

21, 2026

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I.

INTRODUCTION

On September 18, 2025, plaintiff David

I. Pankonin ("Plaintiff") filed this action against Anna Tan and Tim Lane. In brief, Plaintiff alleges that he was defrauded by Anna Tan and induced into depositing money into "EC Markets", a fake trading platform.

On July 24, 2026, Plaintiff filed a proof of service of summons stating that on July 7, 2026, a copy of the summons and complaint was left with Tony Zhang at 2040 Courtland Avenue in San Marino,

California. The party served was “Anna Tan.”

On August 13, 2026, Qingru She aka Shirley She (“Ms. She”) filed this motion to quash. Ms. She’s husband, Mr. Zhang, states that the process server specifically sought “Shirley” and referred to “Shirley AKA Anna.” (Motion, Zhang Decl., ¶ 6.) Ms. She argues that service was improper because, in effect, Ms. She is not “Anna Tan” and her photos and personal information have been misappropriated to create fraudulent identities, presumably such as “Anna Tan”, which she has never used in any capacity.

In opposition, Plaintiff argues that Ms. She and Anna Tan are the same individual and that a subpoena has been served on Wells Fargo to produce bank records. Plaintiff contends the bank records will show that Ms. She controlled the bank accounts that he transferred money into. Plaintiff requests the Court continue the hearing on this Motion for 90 days to bring a motion to compel Wells Fargo’s compliance with the subpoena as Ms. She objected to the subpoena. (Motion, p. 2.)

To the extent that Plaintiff intended to sue and serve Qingru She as having used the alias Anna Tan, service was improper because Ms. She’s name, either her formal legal name of Qingru She or English name of Shirley She, does not appear anywhere in the summons, Complaint, or the proof of service of summons. The summons must be “directed to the defendant” and must contain “[t]he names of the parties to the action.” (Code Civ. Proc., 412.20(a).) “The defendant should be sued in his or her true name, if known, even where a writing or other instrument on which the complaint is founded contains a different or erroneously spelled name. (4 Witkin, Cal. Proc. 6th Plead § 489 (2026).) Thus, whether Wells Fargo can produce documents relating to Anna Tan is not dispositive of this motion because Qingru She has not been named in this action.

Accordingly, the service of summons effected on July 7, 2026, is quashed as ineffective on Qingru She because no such party has been named in this action.

Dated
this 21st
day of September 2026

William A.

Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at ALHDEPT3@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.